

1 BRYANT BURNSTAD, SBN 297286
2 **RESURGENCE LEGAL GROUP, PC**
3 10805 Holder Street, Suite 167
4 Cypress, CA 90630
5 (T) 877/440-0860 (F) 714/226-0024
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Electronically FILED by
Superior Court of California,
County of Los Angeles
11/18/2025 11:40 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By J. Riveros, Deputy Clerk

Refer to File Number: TP134641
Attorney for Plaintiff

7 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
8 **COUNTY OF LOS ANGELES, NORTH VALLEY JUDICIAL DISTRICT**
9 **CHATSWORTH COURTHOUSE**

10 VELOCITY INVESTMENTS LLC,

11 Plaintiff

12 v.

13 JOSE BARRIENTOS,
and DOES 1 through 15 inclusive

14 Defendant(s).

CASE NO.: 24CHLC01576

**PLAINTIFF'S SUMMARY OF CASE
IN SUPPORT OF DEFAULT
JUDGMENT**

17 **I.**

18 **NATURE OF ACTION**

19 Plaintiff filed suit to recover an unpaid balance on a line of credit owed by Defendant(s). The
20 total principal amount owed is \$5,394.68. Plaintiff has incurred \$293.00 in costs. A total of \$5,687.68
21 remains unpaid. Attached hereto as Exhibit "1" and incorporated by this reference is an FDCPA
22 demand letter. Upon the expiration of said FDCPA demand letter, Plaintiff filed suit to collect money
23 owed by Defendant(s).

1 II.

2 **STATUS OF LITIGATION**

3 Suit was filed in this action on January 18, 2024. Attached hereto as Exhibit "2" and
4 incorporated by this reference is an original copy of the Summons issued in the instant action. The
5 Defendant, JOSE BARRIENTOS, was served with the Summons and Complaint on December 27,
6 2024. Attached hereto as Exhibit "3" and incorporated by this reference is an original copy of the
7 Proof of Service.

8 III.

9 **NATURE OF RELIEF**

10 Plaintiff is requesting the entry of a default judgment against the above named Defendant(s) for
11 Breach of a line of credit agreement. The total amount owing through today is as follows:

12	Principal	\$5,394.68
13	Costs	\$293.00
14	Interest	\$0.00
15	Less Payments	\$0.00
16	Total	\$5,687.68

November 4, 2025

17 Date:

18 Respectfully submitted,

19 RESURGENCE LEGAL GROUP, PC

20 By:



21 ☒ BRYANT BURNSTAD, SBN 297286

22 Attorney for Plaintiff

23 California Debt Collection License #10749-99.

24 This is an attempt to collect a debt by a debt collector and any information obtained will be used for
25 that purpose.

EXHIBIT “1”

Resurgence Legal Group, PC
 3000 Lakeside Drive, Suite 309-S
 Bannockburn, IL 60015
 T. 877/440-0860 F. 847/656-0551
 8:30 am - 5:00 pm
www.resurgencelegal.com

To: JOSE BARRIENTOS
 9028 TELFAIR AVE
 LOS ANGELES CA 91352

Resurgence Legal Group, PC's Reference Number: TP134641

Resurgence Legal Group, PC is a debt collector. We are trying to collect a debt that you owe to VELOCITY INVESTMENTS LLC. We will use any information you give us to help collect the debt.

Our information shows:

You had an account with LOAN ASSET ISSUER LLC, SERIES 2021 M-2 ISSUED BY FINWISE BANK SERVICED BY UPSTART NETWORK, INC, with an account number ending in *****1838.

As of September 9, 2022, you owed: \$5,394.68

Between September 9, 2022 and today:

You were charged this amount in interest: + \$0.00

You were charged this amount in fees: + \$0.00

You paid or were credited this amount toward the debt: - \$0.00

Total amount of the debt now: \$5,394.68

How can you dispute the debt?

- **Call or write to us by December 17, 2023, to dispute all or part of the debt.** If you do not, we will assume that our information is correct.
- **If you write to us by December 17, 2023,** we must stop collection on any amount you dispute until we send you information that shows you owe the debt. You may use the form below or write to us without the form. You may also include supporting documents. We accept disputes electronically at compliance@resurgencelegal.com.

What else can you do?

- **Write to ask for the name and address of the original creditor, if different from the current creditor.** If you write by December 17, 2023, we must stop collection until we send you that information. You may use the form below or write to us without the form. We accept such requests electronically at compliance@resurgencelegal.com.
- **Go to www.cfpb.gov/debt-collection to learn more about your rights under federal law.** For instance, you have the right to stop or limit how we contact you.
- Contact us about your payment options.
- Póngase en contacto con nosotros para solicitar una copia de este formulario en español.

Notice: See reverse side for important information.

Mail this form to:

Resurgence Legal Group, PC
 3000 Lakeside Drive, Suite 309-S
 Bannockburn, IL 60015

JOSE BARRIENTOS
 9028 TELFAIR AVE
 LOS ANGELES CA 91352

How do you want to respond?

Check all that apply:

- ☐ **I want to dispute the debt because I think:**
 - ☐ This is not my debt.
 - ☐ The amount is wrong.
 - ☐ Other (please describe on reverse or attach additional information).
- ☐ **I want you to send me the name and address of the original creditor.**
- ☐ **I enclosed this amount: \$_____**

Make your check payable to *Resurgence Legal Group, PC*.
 Include the reference number TP134641

- ☐ **Quiero este formulario en español.**

You may request records showing the following: (1) That VELOCITY INVESTMENTS LLC has the right to seek collection of the debt; (2) the debt balance, including an explanation of any interest charges and additional fees; (3) the date of default or the date of the last payment; (4) the name of the charge-off creditor and the account number associated with the debt; (5) the name and last known address of the debtor as it appeared in the charge-off creditor's or debt buyer's records prior to the sale of the debt, as appropriate; and (6) the names of all persons or entities that have purchased the debt. You may also request from us a copy of the contract or other document evidencing your agreement to the debt.

A request for these records may be addressed to: VELOCITY INVESTMENTS LLC, c/o Resurgence Legal Group, PC, 3000 Lakeside Drive, Suite 309-S, Bannockburn, IL 60015.

The state Rosenthal Fair Debt Collection Practices Act and the federal Fair Debt Collection Practices Act require that, except under unusual circumstances, collectors may not contact you before 8:00 a.m. or after 9:00 p.m. They may not harass you by using threats of violence or arrest or by using obscene language. Collectors may not use false or misleading statements or call you at work if they know or have reason to know that you may not receive personal calls at work. For the most part, collectors may not tell another person, other than your attorney or spouse, about your debt. Collectors may contact another person to confirm your location or enforce a judgment. For more information about debt collection activities, you may contact the Federal Trade Commission at 1-877-FTC-HELP or www.ftc.gov.

Please note that we have updated our Privacy Policy, which includes an explanation of the personal information we collect and share with others and provides information about new privacy rights granted to California residents and instructions for making a privacy request pursuant to the California Consumer Privacy Act. To view the new policy, visit us online at <https://resurgencelegal.com/privacy/> or contact us to request a copy.

California Debt Collection License #10749-99.

LOS ANGELES CA 91352
9028 TELFAIR AVE
JOSE BARRIENTOS

EXHIBIT “2”

SUMMONS
(CITACIÓN JUDICIAL)

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):
JOSE BARRIENTOS,
and DOES 1 through 15 inclusive

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):
VELOCITY INVESTMENTS LLC

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

Electronically FILED by
Superior Court of California,
County of Los Angeles
1/18/2024 10:45 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or a phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), your county law library or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default and your wages, money and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a non-profit legal services program. You can locate these non-profit groups at the California Legal service Website (www.lawhelpcalifornia.org), the California Courts Online Self Help Center (www.courtinfo.ca.gov/selfhelp) or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of \$10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.

¡AVISO! Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.

Tiene 30 DÍAS CALENDARIOS después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en forma legal correcto si desea que procesen su caso en corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.courtinfo.ca.gov/selfhelp/espanol/), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé una extensión de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión de abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California (www.courtinfo.ca.gov/selfhelp/espanol/) o poniéndose en contacto con la corte o el colegio de abogados locales. **AVISO:** Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de \$10,000 o mas de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:
(El nombre y dirección de la corte es):
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE
NORTH VALLEY JUDICIAL DISTRICT
9425 PENFIELD AVE
CHATSWORTH, CA 91311

CASE NUMBER:
(Número del Caso):

24CHLC01576

The name, address and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):

BRYANT BURNSTAD, RESURGENCE LEGAL GROUP, PC, 10805 Holder St, Suite 167, Cypress, CA 90630 (877/440-0860)
TP134641

DATE:
(Fecha): **01/18/2024**

Clerk, by
(Secretario)

H. Martinez

, Deputy
(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)
(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons, (POS-010).)

[SEAL]



NOTICE TO THE PERSON SERVED: You are served

1. ☒ as an individual defendant
2. ☐ as the person sued under the fictitious name of (specify):
3. ☐ on behalf of (specify):

under: ☐ CCP 416.10 (corporation) ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.40 (association or partnership) ☐ other (specify):	☐ CCP 416.60 (minor) ☐ CCP 416.70 (conservatee) ☐ CCP 416.90 (authorized person)
--	---
4. ☐ by personal delivery on (date):

EXHIBIT “3”



ATTORNEY OR PARTY WITHOUT ATTORNEY (Name and address): BRYANT BURNSTAD, BAR # 297286 RESURGENCE LEGAL GROUP, PC (SO CA) 10805 HOLDER STREET, SUITE 167 CYPRESS, CA 90630 TELEPHONE NO.: 8774400860 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): VELOCITY INVESTMENTS LLC	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 1/02/2025 8:05 AM David W. Slayton, Executive Officer/Clerk of Court, By C. Salas-Lopez, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Ave MAILING ADDRESS: 9425 Penfield Ave CITY AND ZIP CODE: Chatsworth , CA 91311 BRANCH NAME: Los Angeles-CHATSWORTH COURTHOUSE PLAINTIFF/PETITIONER: VELOCITY INVESTMENTS LLC DEFENDANT/RESPONDENT: JOSE BARRIENTOS	CASE NUMBER: 24CHLC01576
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: TP134641

(Separate proof of service is required for each party served.)

1. At the time of service, I was at least 18 years of age and not a party to this action.
2. I served copies of:
 - a. ☒ Summons
 - b. ☒ Complaint
 - c. ☒ Alternative Dispute Resolution (ADR) package
 - d. ☒ Civil Case Cover Sheet *(served in complex cases only)*
 - e. ☐ Cross-complaint
 - f. ☒ Other *(specify documents):* CIVIL CASE COVER SHEET ADDENDUM, GENERAL ORDER, NOTICE OF CASE ASSIGNMENT, ORDER TO SHOW CAUSE HEARING/TRIAL DATE, STATEMENT OF LOCATION, FIRST AMENDED GENERAL ORDER
3. a. Party served *(specify name of party as shown on documents served):* **JOSE BARRIENTOS**
 - b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
4. Address where the party was served: **325 N First St Apt 502 Burbank,, CA 91502**
5. I served the party (check proper box)
 - a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **12/27/2024** (2) at (time): **9:35 AM**
Gender: MALE Age: 51-55 Skin Tone: WHITE Hair: BLACK/GRAY Eye Color: BROWN Height: 5FT 4IN - 5FT 7IN Weight: 171 LBS - 190 LBS
 - b. ☐ **by substituted service.**
 - (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
 - (2) ☐ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
 - (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
 - (4) ☐ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on (date): from: Or ☐ a declaration of mailing is attached
 - (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.



PLAINTIFF/PETITIONER: VELOCITY INVESTMENTS LLC

CASE NUMBER: 24CHLC01576

DEFENDANT/RESPONDENT: JOSE BARRIENTOS

5. c. ☐ **by mail and acknowledgment of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
- (1) on (date): _____ (2) from (city): _____
- (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. (*Attach completed Notice and Acknowledgement of Receipt.*) (Code Civ. Proc., § 415.30.)
- (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)
- d. ☐ **by other means** (*specify means of service and authorizing code section*): _____
- ☐ Additional page describing service is attached.
6. The "Notice to the Person Served" (on the summons) was completed as follows:
- a. ☒ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of (*specify*): _____
- c. ☐ as occupant.
- d. ☐ On behalf of (*specify*): _____
- under the following Code of Civil Procedure section:
- | | |
|---|---|
| ☐ 416.10 (corporation) | ☐ 415.95 (business organization, form unknown) |
| ☐ 416.20 (defunct corporation) | ☐ 416.60 (minor) |
| ☐ 416.30 (joint stock company/association) | ☐ 416.70 (ward or conservatee) |
| ☐ 416.40 (association or partnership) | ☐ 416.90 (authorized person) |
| ☐ 416.50 (public entity) | ☐ 415.46 (occupant) |
| ☐ other: _____ | |
7. **Person who served papers**
- a. Name: JULIO R. ASCORRA / ProVest California LLC Reg. No.: 1539 Reg County: San Diego
- b. Address: 4241 Jutland Drive Suite 203, San Diego, CA 92117
- c. Telephone number: 877-789-6846
- d. **The fee** for service was: \$68.00
- e. I am:
- (1) ☐ not a registered California process server.
- (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
- (3) ☒ a registered California process server:
- (i) ☐ owner ☐ employee ☒ independent contractor.
- (ii) Registration No.: 2023001643
- (iii) County: LOS ANGELES
8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
- or
9. ☐ **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: 12/27/2024

JULIO R. ASCORRA

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF
OR MARSHAL)

(SIGNATURE)